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JUSTIFICATION & APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION (OTFAOC)

Justification for OTFAOC Number: JA25-053

Purchase Request Number: HC108925NSSFR16

Contract Number: HC102824C0004

Task/Delivery Order Number: Not Applicable (N/A)

Procurement Title: Defense Information Systems Network (DISN) Mission Support Office (MSO) Application Services and Ancillary Support Bridge

Estimated Value: [REDACTED]

Statutory Authority: Federal Acquisition Regulation (FAR) 6.302-1

Upon the basis of the following justification, I, as Procuring Activity Competition Advocate (PACA), hereby approve the use of OTFAOC of the proposed contractual action pursuant to the authority of 10 U.S.C. 3204(a)(1).

1. REQUIRING AGENCY AND CONTRACTING ACTIVITY:

Requiring Agency:

Defense Information Systems Agency (DISA)/ Transport Program Executive Office (PEO Transport) Services
6910 Cooper Avenue
Fort Meade, Maryland 20755

Contracting Activity:

DISA/Defense Information Technology Contracting Organization (DITCO)/PS8313
2300 East Drive
Building 3600
Scott Air Force Base, Illinois 62225

2. NATURE/DESCRIPTION OF ACTION(S): The nature of this action is to procure the continuation of DISN MSO Application Services and Ancillary Support via a bridge modification which will extend the period of performance (PoP) of the contract, HC102824C0004. The PoP for the current contract ends May 02, 2025. The anticipated PoP for the bridge is a 3.25-month period of May 3, 2025 – August 11, 2025. This extension will ensure continued support during the protest period of the follow-on contract/order. The DISN MSO Application Services and Ancillary Support effort actively provides mission critical support to several programs and projects within PEO Transport that reflect on real time global enterprise network service capabilities to Military Departments and other Department of Defense (DoD) agencies. Fiscal Year 2025 Defense Working Capital Funds will be used. This modification will increase the current life cycle value by [REDACTED]

Page 1 of 5 Pages

Controlled By: DISA

Controlled By: PSD/PS8313

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POC: [REDACTED]

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3. DESCRIPTION OF SUPPLIES/SERVICES: Continuity of services is required for support to PEO Transport. The contract provides direct support for Information Technology (IT) consulting, analytical services, and planning and support to several programs and projects that reflect on real time global enterprise network service capabilities to Military Departments and other DoD agencies. The Government has a need to provide continuous oversight in the following areas: Program Management, Strategic Planning, Acquisition and Sustainment Planning and Strategy and Governance of the day-to-day operations of the DISN. Due to the breadth and depth of the requirements, no alternate contractor can develop the work force necessary to replace the current support team and achieve an initial satisfactory level of support expeditiously.

The current contract expires on May 02, 2025. This effort was re-competed as a small business set-aside acquisition. On March 17, 2025, the follow-on contract/order, HC102818D0027/HC102825F6520, was awarded. The bid protest was submitted in a timely manner to trigger an automatic suspension of performance of the follow-on contract/order pending resolution of the protest in accordance with FAR 33.103(f)(3). The extension of the current contract will allow for continued support of this vital program during the protest period, while retaining the ability to provide a consistent level of effort for PEO Transport and its stakeholders without a break in service.

The estimated cost of support for this extension is [REDACTED]

4. IDENTIFICATION OF STATUTORY AUTHORITY: Only one responsible source and no other supplies or services will satisfy agency requirements, 10 U.S.C. 3204(a)(1), FAR 6.302-1, and Defense Federal Acquisition Regulation Supplement 206.302-1.

5. DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:

(a) *Description of events.* HC102818D0027/HC102825F6520 was competed under solicitation number 832369148. Award of HC102818D0027/HC102825F6520 was made on March 17, 2025, and this award was protested. Thereafter, a stop-work order was issued.

(b) *Justification.*

(1) Minimum Government Requirements. PEO Transport and its mission partners all depend on the continued support for IT consulting, analytical services, and planning and support for programs and projects. This support includes DoD IT policy analysis and development; IT product support and costing, tracking of customer and DISN IT network projects; supporting customer /meetings; developing recommendations and processes in support of DISN policies and processes; conducting analyses of Requests for Change, Enterprise Architecture (EA) network acquisition planning and strategies, resource activities in support of budget and exhibit development, quality assurance, IT issue papers and white papers, and EA business case and cost benefit analyses. Due to the breadth and depth of the requirements and the clearance required to support requirements, no

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alternate contractor can develop the work force necessary to replace the current support team and achieve an initial satisfactory level of support prior to the expiration of the current task order. A gap in service would be devastating to the warfighter and have worldwide ramifications as this effort ensures the cyber security of the DISN infrastructure which is used by military forces around the globe.

- (2) Proposed sole source contractor. Due to the bid protest, Synergetic Information Systems, Inc. (Synergetic) is the only source that can fulfill this requirement without risk of a substantial break in service/support to DISA and its mission partners. Again, due to the bid protest filed by AIX Tech, LLC, Synergetic is the only source that can supply the needed services during this period without a break in service.
- (3) A sole-source action is necessary due to a protest filed in response to the award of the follow-on contract/order, HC102818D0027/HC102825F6520. If a bid protest had not been received, this extension would not be necessary.

6. CONTRACT OPPORTUNITIES ANNOUNCEMENT/POTENTIAL SOURCES: This modification is a bridge extension of the existing contract until the protest of the follow-on contract can be resolved. Solicitation 832369148 for the follow-on contract/order was solicited using the ENCORE III Small Business Suite Indefinite Delivery Indefinite Quantity on October 18, 2024 as a small business set-aside. Three proposals were received. Award was made on March 17, 2025.

7. DETERMINATION OF FAIR AND REASONABLE COST: Prior to award of HC102824C0004 (solicitation number HC102824R0009), a cost/price evaluation was conducted in accordance with FAR 15.404. The contract prices were determined to be reasonable. The proposed cost/prices for the extension will be compared to the current contract prices as well as the Independent Government Cost Estimate in order to determine fair and reasonableness.

8. MARKET RESEARCH: This is an extension to the existing contract to ensure continued support until the protest and transition period of the follow-on contract/order, HC102818D0027/HC102825F6520, are complete. Market research was conducted for the follow-on contract/order which was conducted within the last 12 months. The market research identified potential sources which enabled the follow-on contract/order to be conducted as an open market small business set-aside.

9. ANY OTHER SUPPORTING FACTS: None

10. LISTING OF INTERESTED SOURCES: None

11. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FULL AND OPEN COMPETITION.

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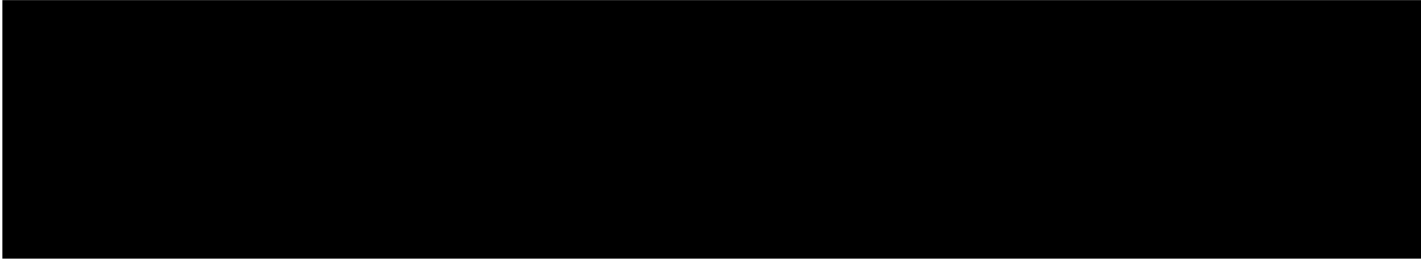
- (a) Current Contract: HC102824C0004
- (b) Status: Expires May 2, 2025. Competitive Small Business Set-Aside Source Selection completed for follow-on. Award announced March 17, 2025. Stop-work order was issued on March 26, 2025 due to a bid protest.

12. REFERENCE TO THE APPROVED ACQUISITION PLAN (AP): An AP was not required for this effort as it does not meet the dollar threshold.

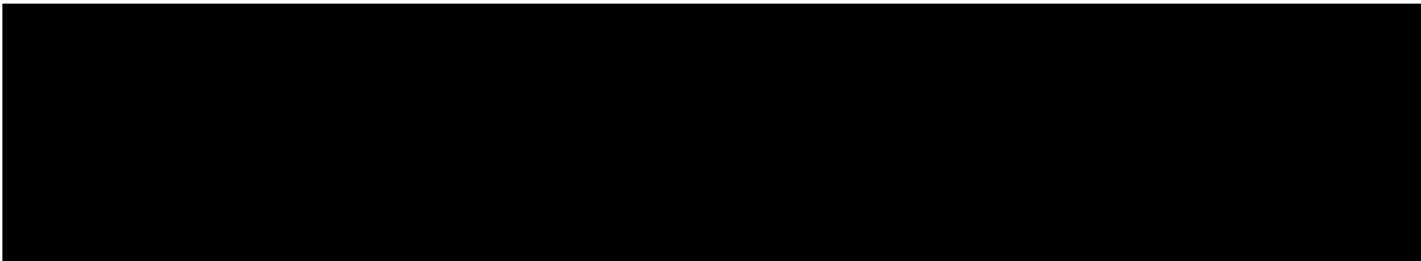
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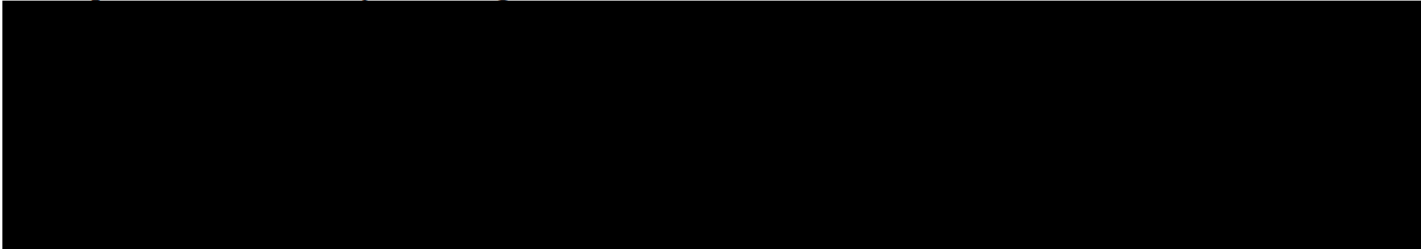
TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.



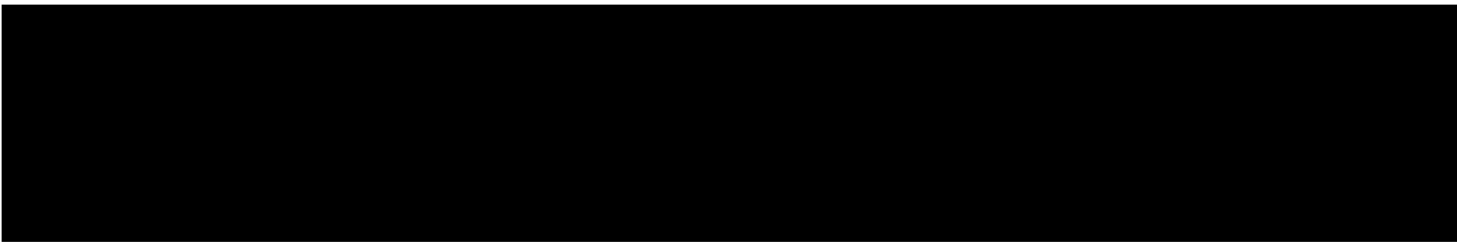
REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

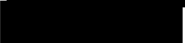


CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.



PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$15M, this review serves as approval.



ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO: Jason Day, jason.j.day.civ@mail.mil,  and/or Shamra Joiner, shamra.y.joiner.civ@mail.mil, 

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